

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

\_\_\_\_\_

MICKAIL DRAYTON ARCHER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, DEAN GARCIA and RAFAEL MUSAYEV,

Defendants.

\_\_\_\_\_

Filed: \_\_\_\_\_

INDEX NO.

Plaintiff designates Queens  
County as the place of trial.

**S U M M O N S**

The basis of venue is  
the County in which the  
cause of action arose.

**To the above-named Defendants:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York  
December 4, 2023

**ASHER & ASSOCIATES, P.C.**  
Attorneys for Plaintiff  
111 John Street  
Fourteenth Floor  
New York, New York 10038  
(212) 227-5000

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza, Room 300  
New York, New York 10038

DEAN M. GARCIA  
1 Lefrak City Plaza  
Queens, New York 11368

RAFAEL MUSAYEV  
1 Lefrak City Plaza  
Queens, New York 11368

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

-----X  
MICKAIL DRAYTON ARCHER,

Index No.:

Plaintiff,

**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, DEAN GARCIA and RAFAEL MUSAYEV,

Defendants.  
-----X

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified  
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, MICKAIL DRAYTON ARCHER, at all times herein mentioned was and still is a resident of the County of Kings and the State of New York.
2. The defendant THE CITY OF NEW YORK (hereinafter "CITY"), at all times herein mentioned, was and still is a domestic municipal corporation organized and existing under the laws of the State of New York.
3. The defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD"), at all times herein mentioned, was and still is a domestic municipal corporation organized and existing under the laws of the State of New York, with its principal place of business situated in the County of New York and the State of New York.
4. At all times hereinafter mentioned, the defendant NYPD was and is a department or agency of defendant CITY that was and is responsible for the appointment, training, supervision, promotion and discipline of the police officers of the NYPD, including the individual police officers named herein.
5. At all times hereinafter mentioned, the defendants CITY and NYPD employed the police

officers hereinafter mentioned in this complaint.

6. Upon information and belief, the defendants CITY and NYPD owned the police motor vehicle hereinafter mentioned in this complaint.

7. Upon information and belief, the defendants CITY and NYPD maintained the police motor vehicle hereinafter mentioned in this complaint.

8. Upon information and belief, the defendants CITY and NYPD controlled the police motor vehicle hereinafter mentioned in this complaint.

9. The defendant, P.O. DEAN GARCIA, at all times herein mentioned was and still is a resident of the State of New York.

10. Upon information and belief, the defendant P.O. DEAN GARCIA was an employee of defendant CITY.

11. Upon information and belief, the defendant P.O. DEAN GARCIA was an employee of defendant NYPD.

12. The defendant, P.O. RAFAEL MUSAYEV, at all times herein mentioned was and still is a resident of the State of New York.

13. Upon information and belief, the defendant P.O. RAFAEL MUSAYEV was an employee of defendant CITY.

14. Upon information and belief, the defendant P.O. RAFAEL MUSAYEV was an employee of defendant NYPD.

15. Prior to the commencement of this action, a notice of claim in writing was served on behalf of MICKAIL DRAYTON ARCHER, upon CITY, P.O. DEAN GARCIA, P.O. RAFAEL MUSAYEV and NYPD in accordance with Section 50-e of the General Municipal Law.

16. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of MICKAIL DRAYTON ARCHER, upon CITY, P.O. DEAN GARCIA, P.O. RAFAEL MUSAYEV and NYPD in accordance with Section 50-e of the General Municipal Law.

17. Within ninety days (90) of September 5, 2022, a notice of claim in writing was served on behalf of MICKAIL DRAYTON ARCHER, upon CITY, P.O. DEAN GARCIA, P.O. RAFAEL MUSAYEV and NYPD in accordance with Section 50-e of the General Municipal Law.

18. Prior to the commencement of this action, notice of the intention of MICKAIL DRAYTON ARCHER to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of MICKAIL DRAYTON ARCHER upon CITY, P.O. DEAN GARCIA, P.O. RAFAEL MUSAYEV and NYPD.

19. Although more than thirty (30) days have elapsed since service of such notice of claim, CITY, P.O. DEAN GARCIA, P.O. RAFAEL MUSAYEV and/or NYPD neglected and has refused to pay said claim or adjust same.

20. A hearing pursuant to General Municipal Law 50-h was adjourned without a new date having been arranged.

21. This action is commenced within one (1) year and ninety (90) days from September 5, 2022, the date the incident as herein set forth occurred.

22. On September 5, 2022, CITY was the owner of a certain police vehicle, bearing a New York license plate number JHN6952.

23. On September 5, 2022, NYPD was the owner of a certain police vehicle, bearing a New York license plate number JHN6952.

24. On September 5, 2022, CITY was the registered owner of a certain police vehicle, bearing a New York license plate number JHN6952.

25. On September 5, 2022, NYPD was the registered owner of a certain police vehicle, bearing a New York license plate number JHN6952.

26. On September 5, 2022, CITY was the titled owner of a certain police vehicle, bearing a New York license plate number JHN6952.

27. On September 5, 2022, NYPD was the titled owner of a certain police vehicle, bearing a New York license plate number JHN6952.

28. On September 5, 2022, CITY was the lessee of a certain police vehicle, bearing a New York license plate number JHN6952.

29. On September 5, 2022, NYPD was the lessee of a certain police vehicle, bearing a New York license plate number JHN6952.

30. On September 5, 2022, CITY was the lessor of a certain police vehicle, bearing a New York license plate number JHN6952.

31. On September 5, 2022, NYPD was the lessor of a certain police vehicle, bearing a New York license plate number JHN6952.

32. On September 5, 2022, CITY maintained a certain police vehicle, bearing a New York license plate number JHN6952.

33. On September 5, 2022, NYPD maintained a certain police vehicle, bearing a New York license plate number JHN6952.

34. On September 5, 2022, CITY controlled a certain police vehicle, bearing a New York license plate number JHN6952.

35. On September 5, 2022, NYPD controlled a certain police vehicle, bearing a New York license plate number JHN6952.

36. On September 5, 2022, defendant P.O. DEAN GARCIA was the operator of a certain police vehicle, bearing a New York license plate number JHN6952.

37. On September 5, 2022, the police vehicle bearing New York license plate number JHN6952 was being operated by defendant P.O. DEAN GARCIA with the express knowledge and consent of its owner.

38. On September 5, 2022, the police vehicle bearing New York license plate number JHN6952 was being operated by defendant P.O. DEAN GARCIA while in the course of business of its owner and/or in the scope of employment.

39. On September 5, 2022, defendant P.O. DEAN GARCIA controlled a certain police vehicle bearing New York license plate number JHN6952.

40. On September 5, 2022, defendant P.O. RAFAEL MUSAYEV was a passenger in a certain police vehicle bearing New York license plate number JHN6952.

41. On September 5, 2022, defendant P.O. RAFAEL MUSAYEV was a passenger in a certain police vehicle bearing New York license plate number JHN6952 while in the course of business of its owner and/or in the scope of employment.

42. On September 5, 2022, defendant P.O. RAFAEL MUSAYEV controlled a certain police vehicle bearing New York license plate number JHN6952.

43. On September 5, 2022, defendant P.O. RAFAEL MUSAYEV was a passenger in a

certain police vehicle bearing New York license plate number JHN6952 being operated by defendant P.O. DEAN GARCIA.

44. That at all times hereinafter mentioned the roadways known as 185th Street and Jamaica Avenue, Queens, New York were public roadways and thorough fares in common use by the residents of the State of New York and others.

45. On September 5, 2022, plaintiff MICKAIL DRAYTON ARCHER was sitting on a motorcycle at a gas station at/near 185th Street and Jamaica Avenue, Queens, New York.

46. On September 5, 2022, the plaintiff MICKAIL DRAYTON ARCHER was injured when a certain police vehicle bearing New York license plate number JHN6952 being operated by defendant P.O. DEAN GARCIA came into contact with the motorcycle on which plaintiff was sitting at a gas station at/near 185th Street and Jamaica Avenue, Queens, New York.

**AS AND FOR A FIRST CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF MICKAIL DRAYTON ARCHER –**  
**EXCESSIVE FORCE**

47. On September 5, 2022, the plaintiff MICKAIL DRAYTON ARCHER was lawfully on the premises of the gas station at/near 185th Street and Jamaica Avenue, Queens, New York.

48. On September 5, 2022, the plaintiff was subjected to physical abuse/excessive force by multiple members of the NYPD, including the individually named defendants herein.

49. Based upon information and belief, the officers, including the individually named defendants herein, possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

50. Plaintiff MICKAIL DRAYTON ARCHER was injured when multiple members of the NYPD, including the individually named defendants herein, came into contact with the motorcycle

on which he was sitting and thereafter forcibly detained and handcuffed him.

51. Plaintiff MICKAIL DRAYTON ARCHER was caused to suffer severe personal injuries having been subjected to excessive force.

52. At all relevant times and in all their actions described herein, the defendants, including the individually named defendants herein, were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

53. At all relevant times, the defendant CITY was responsible for the actions of its police officers, and more particularly, the individually named police officer defendants herein.

54. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff MICKAIL DRAYTON ARCHER.

55. To date, as a direct result and proximate result of all defendants' actions, plaintiff has suffered physical assault, excessive force and battery, and continues to suffer physical and emotional pain, permanent physical damage, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

56. Due to the foregoing, plaintiff MICKAIL DRAYTON ARCHER is entitled to damages

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF  
PLAINTIFF MICKAIL DRAYTON ARCHER – ASSAULT/BATTERY**

57. Plaintiff MICKAIL DRAYTON ARCHER repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 56, inclusively with the same force and effect as

if set for the fully and at length set forth herein.

58. As a result of the aforementioned actions of members of the NYPD, including the individually named defendants herein, plaintiff MICKAIL DRAYTON ARCHER was placed in apprehension of imminent or offensive contact and was concerned that the defendants were about to cause an offensive or harmful bodily contact.

59. Due to the foregoing, plaintiff MICKAIL DRAYTON ARCHER is entitled to damages

**AS AND FOR A THIRD CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF MICKAIL DRAYTON ARCHER – FALSE**  
**ARREST/FALSE IMPRISONMENT/MALISIOUS PROSECUTION**

60. Plaintiff MICKAIL DRAYTON ARCHER repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 59, inclusively with the same force and effect as if set for the fully and at length set forth herein.

61. Plaintiff was arrested, held in custody, restrained of his liberty and forced to spend time detained/incarcerated.

62. The arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

63. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

64. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be arrested, jailed and charged with a crime.

65. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of his liberty caused her great humiliation and as a result of which he has been damaged.

66. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

67. The charges against plaintiff were wholly dismissed.

68. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; her reputation and character were injured; her earning power permanently impaired.

69. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR A FOURTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF MICKAIL DRAYTON ARCHER**

70. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 70, inclusively with the same force and effect as if set for the fully and at length set forth herein.

71. Such conduct breached the protections provided by the New York State Constitution Article I, §§ 6, 11, and 12.

72. As a result of all foregoing conduct and acts of the defendants with respect to the arrest and subsequent events as alleged above, Plaintiff suffered serious physical, mental and emotional injuries as aforesaid, requiring medical and therapeutic treatment and follow-up care. He also suffered serious reputational and economic injuries.

73. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To be entitled to the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law.

74. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR A FIFTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF MICKAIL DRAYTON ARCHER**

75. Plaintiff repeats, reiterates, realleges and reaffirms each and every allegation contained in paragraphs 1 through 74, inclusively with the same force and effect as if fully and at length set forth herein.

76. Defendants were further negligent in failing to exercise the care in the performance of police duties as a reasonably prudent and careful police officers would have used under similar circumstances.

77. That these defendants were further negligent in that the CITY and NYPD were negligent in the training and instruction of its police and corrections officers by not exercising care in instructing them as to their department, proper police procedure, behavior and conduct as police officers and representatives of the CITY.

78. At all times relevant herein, the acts complained of herein are the direct and proximate result of the failure of the CITY and NYPD to properly select, train, supervise and discipline its employees and servants, and in particular the individual defendants in accordance with the statutes, ordinances, regulations, customs and usages of the defendant CITY and of the State of New York and of the United States of America. Defendant CITY is liable for any torts or liability of the NYPD, its police officers, and its agents and employees under a municipal custom or policy.

79. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to her bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from her usual vocation, avocation and activities and upon information and belief will in the future be disabled from her following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

80. All defendants named herein are derivatively liable for the acts of each other.

81. Their action comes within one or more of the exceptions set forth in CPLR 1602.

82. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR A SIXTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF MICKAIL DRAYTON ARCHER –**  
**NEGLIGENT TRAINING/SUPERVISION/HIRING/RETENTION**  
**(MONELL CLAIMS)**

83. Plaintiff MICKAIL DRAYTON ARCHER repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 83, inclusively with the same force and effect as if fully and at length set forth herein.

84. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

85. At all relevant times, the defendant CITY was responsible for the training of its police officers, and more particularly, defendants named herein.

86. At all relevant times, the defendant CITY was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the NYPD, including the individually named defendants herein.

87. At all times mentioned herein, the defendant CITY knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff MICKAIL DRAYTON ARCHER.

88. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to his bed and home for a

lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from her usual vocation, avocation and activities and upon information and belief will in the future be disabled from her following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

89. All defendants named herein are derivatively liable for the acts of each other.

90. The action comes within one or more of the exceptions set forth in CPLR 1602.

91. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF MICKAIL DRAYTON ARCHER**

92. Plaintiff MICKAIL DRAYTON ARCHER repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 91, inclusively with the same force and effect as if fully and at length set forth herein.

93. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

94. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

95. The acts and conduct described above deprived Plaintiff of her rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

96. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an award of punitive damages.

97. As a result of the conduct of Defendants, Plaintiff suffered serious physical injury causing Plaintiff to experience pain and suffering, future pain and suffering, disabling physical symptoms and economic injuries. All of said injuries may be permanent and all have caused diminution in the quality of Plaintiff's life.

98. As a result of the conduct of Defendants, Plaintiff has been forced to incur, past, present and future medical expenses and was and continues to be deprived of her privacy and liberty, has been adversely affected in his employment and in her ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for her physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

99. In addition, the acts of the Defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which Plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

100. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR A EIGHTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF MICKAIL DRAYTON ARCHER –**  
**FAILURE TO INTERVENE**

101. Plaintiff MICKAIL DRAYTON ARCHER repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 100, inclusively with the same force and effect as if fully and at length set forth herein.

102. At the time of the occurrence neither individually named defendant intervened or attempted

to intervene to prevent any/all of the above actions/occurrences/incidents/contacts from happening to plaintiff.

103. As a result of the foregoing, plaintiffs suffered serious permanent emotional, mental, physical, reputational and economic injuries.

104. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR A NINETH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF MICKAIL DRAYTON ARCHER –**  
**NEGLIGENT/GROSS NEGLIGENT OPERATION OF MOTOR VEHICLE**

105. Plaintiff MICKAIL DRAYTON ARCHER repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 104, inclusively with the same force and effect as if fully and at length set forth herein.

106. That at the aforementioned time and place the defendants were negligent, reckless, and careless in the ownership, operation, management, maintenance and control of the aforescribed motor vehicle in that defendants operated the aforescribed motor vehicle in reckless disregard for the safety of others; in that defendants operated the aforescribed motor vehicle at a dangerous rate of speed under the circumstances; said vehicle was not under proper control and management; defendant failed to steer, maneuver and keep a proper lookout so as to avoid the accident; defendants permitted said vehicle to be improperly and/or defectively equipped with good and sufficient brakes and other necessary equipment and/or failed to properly apply the same at the time of said accident; in these and all other premises failed to observe the applicable statutes, ordinances, rules and regulations pertaining to the operation of motor vehicle upon the public highway.

107. That as a result of the defendants' negligence, plaintiff was caused to sustain serious personal injuries and was rendered sick, sore, lame and disabled, experiencing mental anguish, great pain and suffering and has remained so since said occurrence. Upon information and belief, plaintiff suffered permanent injuries, as such will continue to so suffer in the future. Plaintiff was required to seek medical treatment and has been compelled to expend money and incur obligations for physicians' services and medical expenses for care and treatment of said injuries. Upon information and belief, plaintiff will be compelled to expend additional sums of money and incur further obligations in the future, for additional physicians' services and medical expense for the further care and treatment of said injuries. Plaintiff has been confined to home and bed and has sustained "serious injury" as defined in Section 5102(d) of the Insurance Law of the State of New York.

108. That by reason thereof, plaintiff is entitled to recover for non-economic loss and for such economic losses as are not included within the definition of basic economic loss as set forth in Section 5102(a) of the Insurance Law of the State of New York.

109. That plaintiff is a "covered person" as defined by Section 5102, Subdivision 3, of the Insurance Law of the State of New York.

110. That the foregoing accident and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence and culpable acts and conduct on the part of the defendants above mentioned without any negligence on the part of the plaintiff contributing thereto.

111. As a result of the foregoing, the plaintiff sustained serious personal injuries as defined in Section 5102(d) of the Insurance Law of the State of New York, and/or economic loss

greater than basic economic loss as defined in Section 5102(a) of the Insurance Law of the State of New York.

112. As a result of the foregoing, plaintiff suffered serious permanent emotional, mental, physical, reputational and economic injuries.

113. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR AN TENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF MICKAIL DRAYTON ARCHER**

114. Plaintiff MICKAIL DRAYTON ARCHER repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 114, inclusively with the same force and effect as if fully and at length set forth herein.

115. At all times relevant herein, the aforesaid acts undertaken by the defendants and complained of by plaintiff were so outrageous as to shock the conscience of the court.

116. As a result of the foregoing, plaintiffs suffered serious permanent emotional, mental, physical, reputational and economic injuries.

117. Due to the foregoing, plaintiff is entitled to damages.

118. These actions falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

119. Pursuant to CPLR Section 1602 (2) (iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

120. Pursuant to CPLR Section 1602 (7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

121. Pursuant to CPLR Section 1602 (2) (iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

**WHEREFORE**, the plaintiffs demand:

a. judgment awarding damages on the FIRST CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

b. judgment awarding damages on the SECOND CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

c. judgment awarding damages on the THIRD CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

d. judgment awarding damages on the FOURTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

e. judgment awarding damages on the FIFTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

f. judgment awarding damages on the SIXTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

g. judgment awarding damages on the SEVENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

h. judgment awarding damages on the EIGHTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

i. judgment awarding damages on the NINTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

j. judgment awarding damages on the TENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

k. judgment awarding damages on the ELEVENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

l. interest, the costs and disbursements of this action, together with such other and further

relief as to ther Court seems just and proper.

Dated: New York, New York  
December 4, 2023

*Ryan H. Asher*  
By: **Ryan H. Asher**  
**ASHER & ASSOCIATES, P.C.**  
Attorneys for Plaintiff  
111 John Street  
Fourteenth Floor  
New York, New York 10038  
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

-----X  
MICKAIL DRAYTON ARCHER,

Index No.:

Plaintiff,

-against-

**ATTORNEY'S  
VERIFICATION**

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, DEAN GARCIA and RAFAEL MUSAYEV,

Defendants.  
-----X

Ryan H. Asher, an attorney duly admitted to practice law in the State of New York,  
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the  
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to  
my own knowledge except as to the matters therein stated to be alleged on information and belief  
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the County  
of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge  
are correspondence had with the said plaintiff, information contained in the said plaintiff's file,  
which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York  
December 4, 2023

*Ryan H. Asher*  
\_\_\_\_\_  
RYAN H. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

MICKAIL DRAYTON ARCHER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DEAN GARCIA  
and RAFAEL MUSAYEV,

Defendants.

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**SUMMONS and VERIFIED COMPLAINT**

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The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: *Ryan H. Asher*  
Ryan H. Asher

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**ASHER & ASSOCIATES, P.C.**

Attorneys for Plaintiff  
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Fourteenth Floor  
New York, New York 10038  
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**PLEASE TAKE NOTICE**

**NOTICE OF  
ENTRY**

that the within is a (certified) true copy of a                      duly entered in the office of the Clerk  
of the                      within named   Court on                      , 2023 .

**NOTICE OF  
SETTLEMENT**

that an                      of which the within is a true copy will be presented to the Hon.                      one of  
the                      of the within   named Court, at                      ,                      New York, on                      ,                      2023 , at 9:30  
A.M.  
Dated: